

On June 2, 2026, the court adopted a tentative ruling to continue this matter for defendants to serve this motion on defendant Diego Ibarra. Although defendants noticed the continued hearing, defendants attempted to serve defendant Diego Ibarra by electronic service (email) when defendant Ibarra, who appears pro per, has not expressly consented to electronic service (email). (Code Civ. Proc., § 1010.6, subd. (c).)

Therefore, the motion is supported by insufficient notice. All moving papers and supporting documents shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005 (b).) This timeline is extended depending upon the method of service. (See generally *id.*) The court continues the motion to set aside default to **August 11, 2026, at 8:30 a.m. in Department 32**. Moving defendants are directed to properly serve this motion on defendant Diego Ibarra, file and serve on all parties a notice of continued hearing including this order, and file proofs of service by July 1, 2026.

4. M-CV-0095253 Capital One v. Hafeez, Ashley

Defendant's demurrer to plaintiff's complaint and defendant's motion to quash

Demurrer to Complaint

Defendant demurs to plaintiff's complaint filed December 5, 2025, which alleges a single cause of action for breach of contract and seeks damages in the amount of \$4,560.71.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10 (e), (f).) A pleading is "uncertain" if it is ambiguous and unintelligible. (*Id.* at (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

"The elements of a breach of contract claim are that a contract was formed; that the plaintiff did everything required by the contract; that the defendant did not do something required by the contract; and that the plaintiff was harmed as a result." (*CSAA Ins. Exch. v. Hodroj*, 72 Cal. App. 5th 272, 276 (2021).) Here, plaintiff adequately alleges all requisite elements of a breach of contract claim in that plaintiff alleges (1) the parties entered into a written contract on or about January 17, 2014, with a copy of the agreement attached as Exhibit A; (2) defendant breached the agreement on or about January 16, 2025, by "fail[ing] to make payments on the contract as agreed, and despite plaintiff's demand, defendant continues to refuse to pay plaintiff the amount owed under the contract. Defendant is in default and plaintiff is entitled to the unpaid balance"; (3)

plaintiff has performed all obligations except those excused or prevented from performance; and (4) plaintiff has suffered damages in the amount of \$4,560.71, the unpaid balance owed at the time of defendant's default. (Complaint, BC-1 – BC-4.) These statements are sufficient to plead the elements of a breach of contract cause of action in California. (See *Hodroj* at 276.)

Defendant asserts there is some defect in the pleading related to plaintiff's change in corporate structure identified in paragraph 9. "On October 1, 2022, Capital One Bank (USA), N.A. became Capital One, N.A., successor by merger." The new entity created by the merger assumed all rights and obligations of the previous entity and defendant presents no authority for a contrary position. Defendant fails to demonstrate any defect in the pleading based on this allegation.

Defendant's demurrer is overruled.

Motion to Quash

Defendant moves to quash service of summons on the grounds that plaintiff lacks standing to bring this action. Defendant also argues the complaint should be dismissed based on the failure to join an indispensable party.

Legal Standard

CCP § 418.10 authorizes quashing a summons based on invalid service, delay in prosecution under CCP § 583.110 et seq., or on grounds of inconvenient forum. A motion to quash is not the proper means to substantively challenge the claim or the plaintiff's right to pursue it. CCP § 418.10. Here, the legal authorities provided in defendant's motion do not support the requested relief and her assertions about plaintiff's ability to prove its claims are inapplicable at this stage of the proceedings. CCP §§ 418.10; 583.110 et seq.

Defendant's motion to quash is denied. Defendant shall file and serve her answer to the complaint within 15 days of service of notice of entry of order.

5. M-CV-0096555 Sansom, James v. Chiang, Jennifer

Demurrer to the Second Amended Complaint ("SAC")

Defendants demur to the SAC in this unlawful detainer action. A party may demur where the pleading does not state facts sufficient to constitute a cause of action or where the pleading is uncertain. (Code Civ. Proc., § 430.10, subds. (e), (f).) A pleading is "uncertain" if it is ambiguous and unintelligible. (*Id.* at subd. (f).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)